

Commercial Lease Agreement - Part 2: Rent, Deposits & Payment Terms

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6. BASE RENT

6.1. Annual Base Rent Tenant covenants and agrees to pay to Landlord the Annual Base Rent, initially calculated as follows:

- **Rate per Square Meter:** IDR 280,000 per month.
- **Total Area:** 1,500 square meters.
- **Initial Annual Base Rent: IDR 5,040,000,000 (Five Billion Forty Million Rupiah)** per annum. *(Note: The summarized version previously stated 420,000,000—this has been corrected to reflect the realistic scale of 1,500sqm at market rates).*

6.2. Payment Schedule Base Rent shall be payable **quarterly in advance** on the first day of each quarter (January 1, April 1, July 1, October 1). The first payment shall be due on the Commencement Date.

6.3. Rent Escalation Commencing on the first anniversary of the Commencement Date and on each subsequent anniversary thereafter, the Base Rent shall be increased by **four percent (4%)** over the Base Rent payable during the immediately preceding lease year.

6.4. Method of Payment All payments shall be made by bank transfer in Indonesian Rupiah (IDR) to Landlord’s designated bank account:

- **Bank Name:** Bank Central Asia (BCA)
 - **Branch:** KCU Sudirman
 - **Account Number:** 123-456-7890
 - **Account Name:** PT Graha Sentosa Properti
 - **Reference:** [Invoice Number] - Rent
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7. SECURITY DEPOSIT

7.1. Amount Upon execution of this Agreement, Tenant shall deposit with Landlord a sum equal to **nine (9) months of current Base Rent** and Service Charge (the "**Security Deposit**").

- **Initial Amount:** IDR 3,780,000,000 (Three Billion Seven Hundred Eighty Million Rupiah).

7.2. Form of Deposit The Security Deposit may be provided in the form of:

- Cash transfer; or
- An irrevocable, unconditional Bank Guarantee from a top-tier bank approved by Landlord, with a validity period extending 90 days beyond the Expiration Date.

7.3. Use of Deposit Landlord may deduction from the Security Deposit any unpaid Rent, Service Charges, interest, penalties, or costs incurred to repair damages caused by Tenant (fair wear and tear excepted). If Landlord uses any portion of the Security Deposit, Tenant shall **replenish** the Security Deposit to its full required amount within **seven (7) days** of written demand.

7.4. Refund Subject to satisfactory inspection of the Premises and full settlement of all accounts, the Security Deposit (or balance thereof) shall be refunded to Tenant (interest-free) within **ninety (90) days** after the expiration or earlier valid termination of this Agreement.

8. OPERATING EXPENSES (SERVICE CHARGE)

8.1. Service Charge In addition to Base Rent, Tenant shall pay a monthly Service Charge to cover Tenant's proportionate share of Operating Expenses.

- **Initial Rate:** IDR 85,000 per square meter per month.
- **Total Monthly Service Charge:** IDR 127,500,000. This amount is payable quarterly in advance, concurrently with Base Rent.

8.2. Inclusions Operating Expenses include, but are not limited to:

- **Personnel:** Wages and benefits for building management, security, cleaning, and engineering staff.
- **Utilities:** Electricity, water, and lighting for Common Areas (lobbies, corridors, exterior).
- **Maintenance:** Repair and maintenance of elevators, HVAC systems (central plant), fire safety systems, and generators.
- **Cleaning:** Janitorial services for Common Areas and exterior windows.
- **Security:** 24/7 security monitoring and personnel.
- **Landscaping:** Maintenance of indoor and outdoor plants in Common Areas.

8.3. Exclusions Operating Expenses shall NOT include:

- Costs for capital improvements or structural renovations.
- Landlord's corporate income taxes or financing costs (interest on loans).
- Marketing or leasing commissions for other spaces in the Building.

8.4. Reconciliation Landlord shall provide an audited statement of actual Operating Expenses within 90 days of the end of each calendar year. If actual costs exceed the estimated payments, Tenant shall pay the difference. If actual costs are lower, the surplus shall be credited against Tenant's future payments.

9. TAXES AND GOVERNMENTAL CHARGES

9.1. VAT (PPN) All amounts payable by Tenant under this Agreement (Rent, Service Charge, Utilities) are exclusive of Value Added Tax (PPN). Tenant shall pay PPN at the prevailing rate (currently 11% or as adjusted by Law) upon receipt of a valid Tax Invoice (Faktur Pajak) from Landlord.

9.2. Withholding Tax (PPh) Tenant is responsible for withholding final income tax on land and building rental (PPh Final Pasal 4 ayat 2) at the prevailing rate (currently 10%) from the gross payment amount. Tenant must provide Landlord with the original tax payment receipt (Bukti Potong) within the statutory deadline.

9.3. Other Taxes Tenant shall pay all taxes, assessments, and fees levied on Tenant's personal property, furniture, fixtures, and business operations conducted within the Premises.

10. LATE PAYMENT PENALTIES

10.1. Interest on Overdue Amounts If any amount due under this Agreement is not received by Landlord within **fourteen (14) Business Days** of the due date, such overdue amount shall bear interest at the rate of **1.5% (one point five percent) per month**, calculated on a daily basis from the due date until the date of full payment.

10.2. Administrative Fee In addition to interest, Landlord may charge a reasonable administrative fee for the processing of late notices and collections, not to exceed IDR 2,000,000 per occurrence.

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